

XERIS PHARMACEUTICALS, INC. et al v. NOVITIUM PHARMA, LLC et al

Plaintiff:	XERIS PHARMACEUTICALS, INC. and STRONGBRIDGE DUBLIN LIMITED
Defendant:	NOVITIUM PHARMA, LLC and ANI PHARMACEUTICALS, INC.
Counter-Claimant:	ANI PHARMACEUTICALS, INC. and NOVITIUM PHARMA, LLC
Counter-Defendant:	STRONGBRIDGE DUBLIN LIMITED and XERIS PHARMACEUTICALS, INC.
Case Number:	2:2026cv06568
Filed:	June 4, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	James B Clark
Referring Judge:	Julien Xavier Neals
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Docket Report

This docket was last retrieved on July 28, 2026. A more recent docket listing [may be available from PACER](#).

Date Filed	Document Text
July 28, 2026	Filing 19 ORDER granting Joint Motion to Seal. Signed by Magistrate Judge James B. Clark on 7/28/2026. (ld)
July 20, 2026	Filing 18 JOINT STIPULATION AND ORDER OF CONSOLIDATION of member cases 26-cv-6568 and 26-cv-8641 with lead case 26-cv-2044. Signed by Magistrate Judge James B. Clark on 7/20/2026. (lag,)

Date Filed	Document Text
July 17, 2026	Filing 17 Letter from Nicole G. McDonough, Esq. to the Honorable James B. Clark, III, U.S.M.J. re: Joint Stipulation and Order of Consolidation Filed in In Re Levoketoconazole Litigation. (MCDONOUGH, NICOLE)
July 13, 2026	Filing 16 ANSWER to Counterclaim by STRONGBRIDGE DUBLIN LIMITED, XERIS PHARMACEUTICALS, INC..(CHEVALIER, CHARLES)NOTICE TO COUNSEL: Counsel is advised that pursuant to Local Civil Rule 5.3(c)(2), a single, consolidated motion to seal shall be filed within 14 days following the completed briefing of the materials sought to be sealed, or within 14 days following the date on which the last of such materials was filed under temporary seal if the motion is resolved, unless otherwise directed by the Court. Counsel are further advised that service of sealed documents must be accomplished outside of ECF as provided by Federal R. Civ. Pro. 5(b)(2) only.
June 24, 2026	Filing 15 LETTER ORDER: Initial Conference set for 9/28/2026 at 11:30 AM before Magistrate Judge James B. Clark. Signed by Magistrate Judge James B. Clark on 6/24/2026. (seb)
June 24, 2026	Filing 14 NOTICE of Appearance by STEPHEN R. DONAT on behalf of STRONGBRIDGE DUBLIN LIMITED, XERIS PHARMACEUTICALS, INC. (DONAT, STEPHEN)
June 22, 2026	Filing 13 Corporate Disclosure Statement by NOVITIUM PHARMA, LLC identifying ANI Pharmaceuticals, Inc. as Corporate Parent.. (MCDONOUGH, NICOLE)
June 22, 2026	Filing 12 Corporate Disclosure Statement by ANI PHARMACEUTICALS, INC.. (MCDONOUGH, NICOLE)
June 22, 2026	Filing 11 ANSWER to Complaint , ANSWER to Complaint (sealed unredacted version), COUNTERCLAIM against STRONGBRIDGE DUBLIN LIMITED, XERIS PHARMACEUTICALS, INC. by ANI PHARMACEUTICALS, INC., NOVITIUM PHARMA, LLC. (Attachments: #1 Certificate of Service)(MCDONOUGH, NICOLE)NOTICE TO COUNSEL: Counsel is advised that pursuant to Local Civil Rule 5.3(c)(2), a single, consolidated motion to seal shall be filed within 14 days following the completed briefing of the materials sought to be sealed, or within 14 days following the date on which the last of such materials was filed under temporary seal if the motion is resolved, unless otherwise directed by the Court. Counsel are further advised that service of sealed documents must be accomplished outside of ECF as provided by Federal R.

Date Filed	Document Text
	Civ. Pro. 5(b)(2) only.
June 10, 2026	Filing 10 WAIVER OF SERVICE Returned Executed by XERIS PHARMACEUTICALS, INC., STRONGBRIDGE DUBLIN LIMITED. ANI PHARMACEUTICALS, INC. waiver sent on 6/9/2026, answer due 8/10/2026. (CHEVALIER, CHARLES)
June 10, 2026	Filing 9 WAIVER OF SERVICE Returned Executed by XERIS PHARMACEUTICALS, INC., STRONGBRIDGE DUBLIN LIMITED. NOVITIUM PHARMA, LLC waiver sent on 6/9/2026, answer due 8/10/2026. (CHEVALIER, CHARLES)
June 9, 2026	Filing 8 NOTICE of Appearance by MAGNOLIA S. JOODI on behalf of STRONGBRIDGE DUBLIN LIMITED, XERIS PHARMACEUTICALS, INC. (JOODI, MAGNOLIA)
June 8, 2026	Notice of Judicial Preferences. #Click here for the Judge's Individual Procedure Requirements. (kd)
June 5, 2026	Filing 7 SEALED UNREDACTED COMPLAINT (Attachments: #1 Exhibit F, #2 Exhibit G, #3 Exhibit H, #4 Exhibit I)(adc,)
June 5, 2026	Filing 6 SUMMONS ISSUED as to ANI PHARMACEUTICALS, INC., NOVITIUM PHARMA, LLC. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (adc,)
June 5, 2026	Filing 5 AO120 Patent Form filed. (adc,)
June 5, 2026	Case assigned to Judge Julien Xavier Neals and Magistrate Judge James B. Clark. (tjg,)
June 4, 2026	Filing 4 Corporate Disclosure Statement by STRONGBRIDGE DUBLIN LIMITED. (CHEVALIER, CHARLES)

Date Filed	Document Text
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June 4, 2026	Filing 3 Corporate Disclosure Statement by XERIS PHARMACEUTICALS, INC.. (CHEVALIER, CHARLES)
June 4, 2026	Filing 2 Exhibit to #1 Complaint, by STRONGBRIDGE DUBLIN LIMITED, XERIS PHARMACEUTICALS, INC.. (Attachments: #1 Exhibit G, #2 Exhibit H, #3 Exhibit I) (CHEVALIER, CHARLES)NOTICE TO COUNSEL: Counsel is advised that pursuant to Local Civil Rule 5.3(c)(2), a single, consolidated motion to seal shall be filed within 14 days following the completed briefing of the materials sought to be sealed, or within 14 days following the date on which the last of such materials was filed under temporary seal if the motion is resolved, unless otherwise directed by the Court. Counsel are further advised that service of sealed documents must be accomplished outside of ECF as provided by Federal R. Civ. Pro. 5(b)(2) only.
June 4, 2026	Filing 1 COMPLAINT against ANI PHARMACEUTICALS, INC., NOVITIUM PHARMA, LLC (Filing and Admin fee \$ 405 receipt number ANJDC-17505882) , Related Case Selected, filed by XERIS PHARMACEUTICALS, INC., STRONGBRIDGE DUBLIN LIMITED. (Attachments: #1 Exhibit, #2 Exhibit, #3 Exhibit, #4 Exhibit, #5 Exhibit, #6 Civil Cover Sheet, #7 Certification Pursuant to Local Civil Rule 11.2)(CHEVALIER, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: [Xeris Pharmaceuticals, Inc.](#) (Delaware) and [Strongbridge Dublin Limited](#) (Ireland)

Defendant: [Novitium Pharma, LLC](#) (Delaware) and [ANI Pharmaceuticals, Inc.](#) (Delaware)

Plaintiff's Counsel: [FBT Gibbons LLP](#)

Case Identification: [2:26-cv-06568](#), D.N.J., 06/04/2026

Venue Allegations: Venue is alleged to be proper in the District of New Jersey because Defendants maintain a regular and established place of business in the district and because the filing of their Abbreviated New Drug Application (ANDA) from their New Jersey place of business constitutes an act of infringement within the district.

Core Dispute: Plaintiffs allege that Defendants' submission of an ANDA to the FDA seeking approval to market a generic version of Plaintiffs' drug RECORLEV® (levoketoconazole) constitutes an act of infringement of four U.S. patents related to methods of treating Cushing's syndrome.

Technical Context: The dispute is in the pharmaceutical space and concerns methods of safely administering levoketoconazole, a cortisol synthesis inhibitor, particularly by managing drug-drug interactions with co-administered medications like metformin for patients who also have type 2 diabetes.

Key Procedural History: This is a Hatch-Waxman action filed under 35 U.S.C. § 271(e)(2) in response to Defendants' ANDA No. 221336 and Paragraph IV certification. Plaintiffs' drug, RECORLEV®, was approved by the FDA on December 30, 2021, and has orphan drug exclusivity until December 30, 2028. The asserted patents are listed in the FDA's Orange Book for RECORLEV®. The complaint was filed within 45 days of Plaintiffs' receipt of Defendants' notice letter, triggering a statutory stay of FDA approval for the generic product for up to 30 months.

Case Timeline

Date	Event
2019-03-04	Earliest Priority Date for '393, '547, '940, and '096 Patents
2021-06-01	'393 Patent Issued
2021-12-30	FDA Approved New Drug Application for RECORLEV®
2022-03-22	'547 Patent Issued
2024-02-20	'940 Patent Issued
2025-08-05	'096 Patent Issued
2026-04-24	Novitium Pharma, LLC Sent Paragraph IV Notice Letter
2026-04-27	Plaintiffs Received Paragraph IV Notice Letter
2026-06-04	Complaint Filed

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 11,020,393 - Methods of Treating Disease With Levoketoconazole

Patent Identification: U.S. Patent No. [11,020,393](#), "Methods of Treating Disease With Levoketoconazole," issued June 1, 2021.

The Invention Explained

❑ **Problem Addressed:** The patent describes that while ketoconazole has been used to treat Cushing's syndrome, it carries risks including liver damage (hepatotoxicity) and significant drug-drug interactions, creating an unmet need for a safer, approved therapy **Compl. ¶143** **'393 Patent, col. 1:40-51**

❑ **The Patented Solution:** The invention uses levoketoconazole, the 2S,4R enantiomer of ketoconazole, which is described as more potently inhibiting cortisol biosynthesis **Compl. ¶144** **'393 Patent, col. 1:52-59** The patent specifically discloses a method for managing the drug-drug interaction between levoketoconazole and metformin (a common diabetes drug) by monitoring the patient for specific "dose limiting events" and adjusting the metformin dose accordingly, based on clinical study findings that levoketoconazole increases metformin exposure **'393 Patent, col. 2:52-62** **'393 Patent, col. 23:20-25**

❑ **Technical Importance:** The invention provides a specific, structured treatment protocol to safely manage co-administration of levoketoconazole and metformin, addressing a clinically significant drug-drug interaction discovered during development **Compl. ¶145**

Key Claims at a Glance

❑ The complaint asserts at least Claim 1 **Compl. ¶168**

❑ Independent Claim 1 requires:

❑ A method of treating persistent or recurrent Cushing's syndrome in a subject who also has type 2 diabetes mellitus and is being co-administered metformin.

❑ Administering a therapeutically effective amount of levoketoconazole determined via a titration scheme.

❑ During the titration, monitoring the subject for a dose limiting event, specified as a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level.

❑ If the subject experiences a dose limiting event, reducing the amount of metformin administered.

❑ The complaint does not explicitly reserve the right to assert dependent claims for this patent.

U.S. Patent No. 11,278,547 - Methods of Treating Disease With Levoketoconazole

❑ **Patent Identification:** U.S. Patent No. [11,278,547](#), "Methods of Treating Disease With Levoketoconazole," issued March 22, 2022.

The Invention Explained

❑ **Problem Addressed:** The '547 patent addresses the same general problem as the '393 patent: the need for a safer, more effective treatment for Cushing's syndrome than ketoconazole, particularly concerning the management of drug-drug interactions **'547 Patent, col. 1:41-51**

❑ **The Patented Solution:** The '547 patent claims a similar method of treatment as the '393 patent, involving the administration of levoketoconazole with co-administered metformin, but narrows the patient population to those who have already undergone surgery or radiation for their Cushing's syndrome **'547 Patent, claim 1** This method also requires monitoring for specific dose-limiting events and reducing the metformin dose if one occurs, addressing the interaction where levoketoconazole increases metformin exposure **'547 Patent, col. 2:52-62** **'547 Patent, col. 23:20-25**

❑ **Technical Importance:** This patent provides a tailored treatment protocol for a specific sub-population of Cushing's syndrome patients (post-surgery/radiation), who may have persistent or recurrent disease and require medical therapy.

Key Claims at a Glance

- ❑ The complaint asserts at least Claim 1 [Compl. ¶89](#)
- ❑ Independent Claim 1 requires:
 - ❑ A method of treating Cushing's syndrome in a subject who has had previous surgery or radiation to treat the subject's Cushing syndrome, who also has type 2 diabetes mellitus, and is being co-administered metformin.
 - ❑ Administering a therapeutically effective amount of levoketoconazole determined via a titration scheme.
 - ❑ During the titration, monitoring for a dose limiting event (decreased fasting glucose, abnormal kidney function, and/or a low Vitamin B-12 level).
 - ❑ If a dose limiting event is experienced, reducing the amount of metformin administered.
- ❑ The complaint does not explicitly reserve the right to assert dependent claims for this patent.

U.S. Patent No. 11,903,940 - Methods of Treating Disease With Levoketoconazole

❑ **Patent Identification:** U.S. Patent No. [11,903,940](#), "Methods of Treating Disease With Levoketoconazole," issued February 20, 2024.

❑ **Technology Synopsis:** This patent focuses on the specific biochemical mechanism behind the drug-drug interaction between levoketoconazole and other drugs. It claims a method of treating Cushing's syndrome in a patient who is also taking an organic cation transporter 2 (OCT2) substrate. The method involves monitoring for and reacting to dose-limiting events caused by levoketoconazole's inhibition of OCT2, which increases the patient's exposure to the co-administered OCT2 substrate ['940 Patent, abstract](#) ['940 Patent, claim 1](#)

❑ **Asserted Claims:** At least Claim 1 [Compl. ¶110](#)

❑ **Accused Features:** The proposed label for the Novitium ANDA Product is alleged to instruct co-administration with metformin (an OCT2 substrate) and direct monitoring for dose-limiting events and adjusting dosage, thereby inducing infringement [Compl. ¶111](#)

U.S. Patent No. 12,377,096 - Methods of Treating Disease With Levoketoconazole

❑ **Patent Identification:** U.S. Patent No. [12,377,096](#), "Methods of Treating Disease With Levoketoconazole," issued August 5, 2025.

❑ **Technology Synopsis:** This patent is similar to the '940 patent but focuses on a different transporter mechanism. It claims a method of treating Cushing's syndrome in a patient also taking a multidrug and toxin extrusion transporter 1 (MATE1) substrate. The method requires monitoring for dose-limiting events caused by increased exposure to the MATE1 substrate (due to levoketoconazole's inhibitory effect) and reducing the MATE1 substrate dose if such an event occurs ['096 Patent, abstract](#) ['096 Patent, claim 1](#)

❑ **Asserted Claims:** At least Claim 1 [Compl. ¶128](#)

Accused Features: The proposed label for the Novitium ANDA Product is alleged to instruct co-administration with metformin (a MATE1 substrate) and direct monitoring for dose-limiting events and adjusting dosage, thereby inducing infringement **Compl. ¶129**

III. The Accused Instrumentality

Product Identification: The accused instrumentality is the "Novitium ANDA Product," which is a proposed generic version of RECORLEV® (levoketoconazole) in the form of 150 mg oral tablets **Compl. ¶54** **Compl. ¶59**

Functionality and Market Context: As a generic drug, the Novitium ANDA Product is intended to be bioequivalent to RECORLEV® and used for the same indications **Compl. ¶60** The infringement allegations center not on the composition of the drug itself, but on the use that will be induced by its FDA-approved label **Compl. ¶61** The complaint alleges that to obtain FDA approval, the generic label must contain the same drug interaction warnings as the RECORLEV® label **Compl. ¶60** The complaint includes a visual reproduction of the RECORLEV® label's "DRUG INTERACTIONS" section, which instructs physicians to, among other things, "Monitor glycemia, kidney function, and vitamin B12 and adjust metformin dosage as needed" when co-administered **Compl. p. 14** The complaint alleges this instruction, when copied onto the generic label, will induce physicians to perform the patented methods **Compl. ¶73**

IV. Analysis of Infringement Allegations

'393 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating persistent or recurrent Cushing's syndrome in a subject in need thereof, wherein the subject also has type 2 diabetes mellitus and is being co-administered metformin...	The proposed label for the Novitium ANDA product allegedly will instruct its use in Cushing's syndrome patients, including those with type 2 diabetes who are co-administered metformin.	¶68	col. 2:50-54
administering a therapeutically effective amount of levoketoconazole... determined via a titration scheme,	The proposed label allegedly instructs administering a therapeutically effective amount determined via a titration scheme, mirroring the RECORLEV® label.	¶68	col. 9:60-11:13
during the levoketoconazole titration	The proposed label allegedly	¶73	col.

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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scheme, monitoring the subject for a dose limiting event wherein the dose limiting event is a decreased fasting glucose level, abnormal kidney function, limiting events during titration, and/or a low Vitamin B-12 level;

directs healthcare providers to monitor for these specific dose-

13:47-51

if the subject experiences a dose limiting event, reducing the amount of metformin... administered to the subject.	The proposed label allegedly instructs providers to reduce the metformin dosage if the patient experiences a dose-limiting event.	¶73	col. 2:14-19
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'547 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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A method of treating Cushing's syndrome in a subject... wherein the subject has had previous surgery or radiation to treat the subject's Cushing syndrome, [and] also has type 2 diabetes mellitus and is being co-administered metformin...	The Novitium ANDA Product's proposed label will allegedly induce practice of the claimed method in this specific patient sub-population (post-surgery/radiation with co-morbid diabetes).	¶89	col. 25:1-3
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administering a therapeutically effective amount of levoketoconazole... determined via a titration scheme,	The proposed label allegedly instructs administering a therapeutically effective amount determined via a titration scheme.	¶89	col. 9:60-11:13
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during the levoketoconazole titration

scheme, monitoring the subject for a dose limiting event wherein the dose limiting event is a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level;

The proposed label allegedly directs providers to monitor patients for these specified dose-limiting events during titration.

¶94

col. 13:47-51

if the subject experiences a dose limiting	The proposed label allegedly	¶94	col. 2:14-
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Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
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event, reducing the amount of metformin... administered to the subject.	instructs providers to reduce the dosage of metformin if a dose-limiting event occurs.		19
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Identified Points of Contention:

Scope Questions: The core of the dispute will likely be whether the instructions on the proposed generic label are specific enough to induce infringement of every limitation of the method claims. A question for the court may be whether an instruction to "adjust metformin dosage as needed" [Compl. p. 14](#) necessarily directs the claimed step of "reducing the amount of metformin" [Compl. ¶67](#). The defense may argue that "adjust" could mean increase, decrease, or maintain, and thus does not mandate the claimed reduction.

Technical Questions: A key technical question is whether the label's general instruction to "Monitor glycemia, kidney function, and vitamin B12" [Compl. p. 14](#) constitutes monitoring for a "dose limiting event" as that term is used and defined in the patents. The claims link the monitoring to the titration scheme for the purpose of identifying a "dose limiting event," which is a term of art that may require specific interpretation. The complaint alleges that the label's instructions are sufficient to induce monitoring for events like "decreased fasting glucose level, abnormal kidney function, and/or low Vitamin B-12 levels" [Compl. ¶73](#), which directly map to the claim language.

V. Key Claim Terms for Construction

Term 1: "dose limiting event"

Context and Importance: This term is central to the monitoring and dose-reduction steps of the asserted claims. The infringement case hinges on the allegation that the defendants' product label will instruct physicians to monitor for and react to events that qualify as a "dose limiting event." Practitioners may focus on this term because its scope will determine whether the general safety monitoring described on the product label meets this specific claim requirement.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification lists numerous potential dose limiting events, suggesting the term is not exhaustive. For instance, it mentions QTc prolongation, elevated liver function tests, and adverse reactions like diarrhea and nausea in the context of increased metformin exposure ['393 Patent, col. 12:22-13:61](#). This could support an interpretation covering a wide range of adverse events that would prompt a physician to alter a dose.

Evidence for a Narrower Interpretation: Independent Claim 1 of the '393 and '547 patents explicitly defines the relevant events with a "wherein" clause: "wherein the dose limiting event is a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level" ['393 Patent, claim 1](#). This language could be interpreted as defining and limiting the scope of the term for the purpose of that claim, restricting it to only those three specified events.

Term 2: "reducing the amount of metformin"

Context and Importance: This is the final active step in the asserted method claims of the '393 and '547 patents. For inducement to be found, the defendants' label must be shown to encourage or instruct this specific action. The alleged instruction is to "adjust metformin dosage as needed" **Compl. p. 14** The dispute will turn on whether "adjust" is equivalent to "reduce."

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: A defendant might argue that in the context of clinical practice, "adjust" is a broad term and that the patent does not provide a special definition to narrow it.

Evidence for a Narrower Interpretation: The specification consistently frames the interaction as levoketoconazole **increasing** exposure to metformin, necessitating a dose adjustment to mitigate side effects **'393 Patent, abstract '393 Patent, col. 2:11-19** For example, the '393 patent states "the therapeutically effective amount of the MATE1 substrate or OCT2 substrate, is reduced relative to a subject who is not being administered levoketoconazole" **'393 Patent, col. 2:14-19** This context suggests that the only logical and safe "adjustment" in response to a dose-limiting event caused by increased exposure would be a reduction.

VI. Other Allegations

Indirect Infringement: The complaint is founded on a theory of induced infringement. It alleges that Defendants, by filing an ANDA for a generic version of RECORLEV®, intend for their product to be prescribed and used in the same manner as the brand-name drug **Compl. ¶72** The complaint alleges that Defendants know and intend that the proposed product label, by copying the drug interaction warnings of the RECORLEV® label, will instruct and encourage physicians and patients to perform the steps of the patented methods **Compl. ¶¶73-74**

Willful Infringement: The complaint alleges willful infringement based on Defendants' pre-suit knowledge of the asserted patents. This knowledge is alleged to come from the patents' listing in the FDA's Orange Book and from the formal notice letter sent by Plaintiffs **Compl. ¶81** **Compl. ¶82** The complaint asserts that Defendants' decision to proceed with the ANDA filing and Paragraph IV certification despite this knowledge constitutes objective recklessness and renders the infringement willful **Compl. ¶82**

VII. Analyst's Conclusion: Key Questions for the Case

This case appears to be a classic Hatch-Waxman dispute centered on induced infringement of method-of-use patents. The outcome will likely depend on the resolution of two main issues:

1. Label-Directed Infringement: A central question for the court will be one of **inducement:** does the anticipated language on the Defendants' generic drug label, which is expected to mirror the RECORLEV® label, provide instructions that are sufficiently specific to lead a fact-finder to conclude that it will inevitably direct physicians to perform each and every step of the asserted claims? This will involve a close comparison of the label's text with the specific limitations of the patent claims.

2.Definitional Scope: The case may turn on a key question of **claim construction:** can the term "dose limiting event", as used in the claims, be met by the general safety monitoring instructions on the product label? Furthermore, does the label's instruction to "adjust metformin dosage as needed" satisfy the claim requirement to "reduc[e] the amount of metformin," or does this create a non-infringing alternative for physicians?

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IN THE UNITED STATES DISTRICT COURT

FOR THE DISTRICT OF NEW JERSEY

XERIS PHARMACEUTICALS, INC., AND

STRONGBRIDGE DUBLIN LIMITED,

Plaintiffs,

v.

NOVITIUM PHARMA, LLC, AND ANI

PHARMACEUTICALS, INC.

Defendants.

Plaintiffs Xeris Pharmaceuticals, Inc. ("Xeris") and Strongbridge Dublin Limited

("Strongbridge") (collectively, "Plaintiffs"), by their undersigned attorneys, bring this action against Defendants Novitium Pharma, LLC and ANI Pharmaceuticals, Inc. (collectively, the "Novitium Defendants"), and hereby allege as follows:

NATURE OF THE ACTION

1.

This is a civil action for patent infringement arising under the patent laws of the United States, 35 U.S.C. § 1, et seq., and in particular under 35 U.S.C. § 271(e)(2). This action arises from the Novitium Defendants' submission of Abbreviated New Drug Application ("ANDA") No. 221336 ("Novitium's ANDA") to the U.S. Food and Drug Administration ("FDA") seeking approval to manufacture, market, and sell generic versions of Plaintiffs' highly successful pharmaceutical product, RECORLEV®, prior to the expiration of Plaintiffs' U.S. Patent Nos. 11,020,393 (the "'393 Patent"); 11,278,547 (the "'547 Patent"); 11,903,940 (the "'940 Patent"); and 12,377,096 (the "'096 Patent") (collectively, the "Asserted Patents").

RECORLEV®

2.

RECORLEV® (levoketoconazole) is a groundbreaking oral cortisol synthesis inhibitor that represents an important therapeutic advance for the treatment of endogenous hypercortisolemia in adult patients with Cushing's syndrome for whom surgery is not an option or has not been curative.

3.

Cushing's syndrome is a rare and serious endocrine disorder caused by chronic elevated cortisol exposure. The disease's multisystem complications are potentially life-threatening, including metabolic changes, high blood pressure, tissue fragility, and psychological disturbances. Normalization of cortisol levels is the first and most important clinical objective in treating the disease.

4.

RECORLEV® was developed through the innovative work of scientists at Strongbridge (then known as Cortendo AB) who recognized the need for a targeted cortisol synthesis inhibitor. Strongbridge scientists discovered that levoketoconazole, the 2S,4R enantiomer of ketoconazole (chemical name: 2S,4R cis-1-acetyl-4-[4-[[2-(2,4-dichlorophenyl)-2-

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(1H-imidazol-1-ylmethyl)-1,3-dioxolan-4-yl] methoxyl]phenyl] piperazine), potently inhibits key enzymes involved in cortisol biosynthesis. This inventive insight led to the development of RECORLEV® as a purified, single-enantiomer drug specifically optimized for treating Cushing's syndrome. By targeting cortisol synthesis directly, RECORLEV® addresses the underlying pathophysiology of the disease — the first drug to do so.

5.

In October 2021, Xeris acquired Strongbridge, thereby acquiring RECORLEV® and all associated intellectual property rights, including the Asserted Patents. Through this acquisition, Plaintiffs assumed and continued Strongbridge's legacy of research in unique therapies for overlooked patient populations that have critical impacts on people's lives.

6.

On December 30, 2021, FDA approved New Drug Application ("NDA") No. 214133 for RECORLEV®. FDA granted RECORLEV® orphan drug exclusivity, recognizing the critical unmet medical need for effective therapies for patients with Cushing's syndrome. Xeris markets RECORLEV® (levoketoconazole) in the United States pursuant to the RECORLEV® NDA and Plaintiffs continue to invest in its clinical development.

7.

RECORLEV® has orphan drug exclusivity until December 30, 2028.

PARTIES

8.

Plaintiff Xeris is a corporation organized and existing under the laws of the State of Delaware, with its corporate offices and principal place of business at 1375 W. Fulton St., Suite 1300, Chicago, Illinois 60607. Xeris discovers, develops, manufactures, and markets innovative pharmaceutical products to improve patient lives.

9.

Xeris is the assignee and owner of the Asserted Patents.

10. Plaintiff Strongbridge is a private limited company organized and existing under the laws of Ireland, with a principal place of business at 25-28 North Wall Quay, Dublin 1, Ireland.

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11. Strongbridge is the exclusive licensee of the Asserted Patents and holds NDA No. 214133 for RECORLEV®.

12. On information and belief, Defendant Novitium Pharma, LLC is a limited liability company organized and existing under the laws of the State of Delaware, having its principal place of business at 70 Lake Drive, East Windsor, New Jersey 08520. On information and belief, Novitium Pharma, LLC is a wholly-owned subsidiary of Defendant ANI Pharmaceuticals, Inc. On further information and belief, Novitium Pharma, LLC holds (or will hold) any intellectual property rights and marketing authorizations for the generic levoketoconazole oral tablets that are the subject of the Novitium ANDA (the “Novitium ANDA Product”).

13. On information and belief, Defendant ANI Pharmaceuticals, Inc. (“ANI”) is a corporation organized and existing under the laws of the State of Delaware, having its commercial headquarters at 104 Carnegie Center Drive, Suite 300, Princeton, New Jersey 08540. ANI publicly identifies its “headquarters” as “Princeton, NJ” on its official LinkedIn page. See ANI Pharmaceuticals, Inc., LinkedIn, <https://www.linkedin.com/company/ani-pharmaceuticals-inc-> (last visited June 3, 2026). On information and belief, ANI is the parent corporation of Novitium Pharma, LLC and will play a role in any future marketing and sales for the Novitium ANDA Product.

14. On information and belief, the Novitium Defendants collaborate with respect to the development, regulatory approval, marketing, sale, and/or distribution of generic drug products for sale in the United States, including in New Jersey. On further information and belief, the Novitium Defendants are agents of one another and/or operate in concert as integrated parts of the same business group and enter into agreements with each other that are nearer than arm’s length.

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15. On information and belief, the Novitium Defendants are in the business of, among other things, developing, manufacturing, obtaining regulatory approval, marketing, selling, importing, and distributing generic copies of branded pharmaceutical products throughout the United States, including in New Jersey.

16. On information and belief, Novitium Pharma, LLC, in collaboration with ANI, submitted Novitium’s ANDA to the FDA and seeks FDA approval of Novitium’s ANDA.

17. On information and belief, the Novitium Defendants acted collaboratively in preparing and submitting Novitium’s ANDA and continue to act collaboratively in pursuing FDA approval of Novitium’s ANDA and seeking to market the Novitium ANDA Product in the United States, including in the State of New Jersey.

18. On information and belief, the Novitium Defendants intend to commercially manufacture, market, offer for sale, and sell the Novitium ANDA Product throughout the United States, including in the State of New Jersey, in the event the FDA approves Novitium’s ANDA.

19. On information and belief, the Novitium Defendants rely on material assistance from one another to market, distribute, offer for sale, and/or sell generic drugs in the U.S. market, including in the State of New Jersey. On information and belief, the Novitium Defendants intend to act collaboratively to commercially manufacture, market, distribute, offer for sale, and/or sell

the Novitium ANDA Product, in the event the FDA approves Novitium's ANDA.

JURISDICTION AND VENUE

20. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §§ 1331, 1338(a), 2201, and 2202.

21. This Court has personal jurisdiction over Novitium Pharma, LLC because Novitium Pharma LLC has its principal place of business in New Jersey and has registered to do
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business with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0450076770. Novitium Pharma, LLC has thus consented to personal jurisdiction in New Jersey.

22. This Court has personal jurisdiction over ANI because ANI has registered to do business with the State of New Jersey's Division of Revenue and Enterprise Services as a business operating in New Jersey under Business ID No. 0450583292. ANI has thus consented to personal jurisdiction in New Jersey.

23. This Court additionally has personal jurisdiction over ANI because, inter alia, on information and belief, ANI has continuous and systematic contacts with the State of New Jersey, including maintaining its commercial headquarters there, regularly conducts business in the State of New Jersey, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos, has purposefully availed themselves of the privilege of doing business in the State of New Jersey, and intends to sell the Novitium ANDA Product in the State of New Jersey upon approval of Novitium's ANDA.

24. On information and belief, ANI directs, controls, manages, and oversees the activities of its wholly owned subsidiary Novitium Pharma, LLC, including the development, regulatory submission, manufacture, marketing, sale, and distribution of generic pharmaceutical products such as the Novitium ANDA Product, from ANI's New Jersey headquarters. ANI publicly identifies Princeton, New Jersey as the source of its corporate communications, including press releases announcing FDA approvals and launches of new ANDA products and press releases reporting its quarterly and annual financial results, further confirming that ANI's pharmaceutical business is directed from and substantially conducted in this District. See, e.g., ANI Pharmaceuticals Reports First Quarter 2026 Financial Results and Raises 2026 Financial
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Guidance, ANI Pharms., Inc. (May 8, 2026), <https://investor.anipharma.com/news-releases/news-release-details/ani-pharmaceuticals-reports-first-quarter-2026-financial-results>; ANI Pharmaceuticals Announces FDA Approval and Launch of Isosorbide Mononitrate Tablet, ANI Pharms., Inc. (Apr. 8, 2026), <https://investor.anipharma.com/news-releases/news-release-details/ani-pharmaceuticals-announces-fda-approval-and-launch-isosorbide>.

25. On information and belief, ANI is registered to do business in New Jersey, maintains employees and operations in New Jersey, derives substantial revenue from pharmaceutical sales in New Jersey, and avails itself of the benefits and protections of New Jersey law. ANI's contacts with New Jersey are therefore not only continuous and systematic, but also bear a substantial connection to the claims asserted in this action, including because ANI directs the development, regulatory submission, manufacture, marketing, and intended sale of the Novitium ANDA Product from its New Jersey headquarters.

26. On information and belief, the Novitium Defendants are in the business of manufacturing, marketing, importing, distributing, and selling pharmaceutical drug products, including generic drug products, either directly or through subsidiaries, agents, and/or alter egos, which the Novitium Defendants manufacture, distribute, market, and/or sell throughout the United States and in this judicial district.

27. On information and belief, the Novitium Defendants are licensed to sell generic and proprietary pharmaceutical products in the State of New Jersey, either directly or through one or

more of their wholly-owned subsidiaries, agents, and/or alter egos.

28. The Novitium Defendants have committed, aided, abetted, contributed to, and/or participated in the commission of, acts of patent infringement that will lead to foreseeable harm and injury to Plaintiffs, which manufacture and market RECORLEV® for sale and use throughout

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the United States, including in this judicial district. On information and belief and as indicated by a letter dated April 24, 2026, sent by Novitium Pharma, LLC to Plaintiffs pursuant to 21 U.S.C. § 355(j)(2)(B), the Novitium Defendants prepared and filed Novitium's ANDA with the intention of seeking to market the Novitium ANDA Product nationwide, including within this judicial district.

29. On information and belief, the Novitium Defendants plan to sell the Novitium ANDA Product in the State of New Jersey, list the Novitium ANDA Product on the State of New Jersey's prescription drug formulary, and seek Medicaid reimbursements for sales of the Novitium ANDA Product in the State of New Jersey, either directly or through one or more of its wholly owned subsidiaries, agents, and/or alter egos.

30. On information and belief, the Novitium Defendants derive substantial revenue from the marketing, manufacture, and/or sale of generic pharmaceutical products in the United States and in the State of New Jersey.

31. On information and belief, the Novitium Defendants know and intend that the Novitium ANDA Product will be distributed and sold in the State of New Jersey and will thereby displace sales of RECORLEV®, causing injury to Plaintiffs. The Novitium Defendants intend to take advantage of its established channels of distribution in the State of New Jersey for the sale of the Novitium ANDA Product.

32. On information and belief, Novitium Pharma, LLC, with the aid of ANI, filed Novitium's ANDA for the purpose of seeking approval to engage in the commercial manufacture, use, offer for sale, sale, and/or importation of the Novitium Defendants' generic levoketoconazole oral tablets in the United States, including in the State of New Jersey.

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33. On information and belief, Novitium Pharma, LLC regularly invokes the jurisdiction of the courts of this judicial district by pleading claims and counterclaims in pharmaceutical patent infringement actions in this District. See, e.g., Azurity Pharmaceuticals, Inc. v. Novitium Pharma, LLC, C.A. No. 22-05860, ECF No. 30 (D.N.J. Nov. 8, 2022); Taro Pharmaceutical Industries Ltd. et al. v. Novitium Pharma, LLC, C.A. No. 19-01028, ECF No. 6 (D.N.J. Apr. 11, 2019). On further information and belief, Novitium Pharma, LLC has also not contested personal jurisdiction or venue in pharmaceutical patent litigation in this judicial district. See, e.g., Azurity Pharms., Inc. v. Novitium Pharma, LLC, C.A. No. 22-05860, ECF No. 30 (D.N.J. November 8, 2022); Taro Pharm. Indus. Ltd. et al. v. Novitium Pharma, LLC, C.A. No. 19-01028, ECF No. 6 (D.N.J. Apr. 11, 2019).

34. For at least the above reasons, it would not be unfair or unreasonable for the Novitium Defendants to litigate this action in this District, and the Novitium Defendants are subject to personal jurisdiction in this District.

35. Venue is proper in this District under 28 U.S.C. §§ 1391(c) and (d), and 1400(b).

36. Venue is proper at least because on information and belief, the Novitium Defendants submitted Novitium's ANDA from their East Windsor, New Jersey place of business and therefore the Novitium Defendants have committed acts of infringement and have a regular and established place of business in New Jersey for the purposes of venue.

37. Venue is proper against Novitium Pharma, LLC and ANI because, inter alia, both Novitium Pharma, LLC and ANI maintain a regular and established place of business in this District and have committed an act of infringement in this District.

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THE ASSERTED PATENTS

38. On June 1, 2021, the United States Patent and Trademark Office (“USPTO”) duly and legally issued the ’393 Patent entitled “Methods of Treating Disease With Levoketoconazole.” A true and correct copy of the ’393 Patent is attached as Exhibit A. The ’393 Patent is listed in the Approved Drug Products with Therapeutic Equivalence Evaluations (an FDA publication commonly known as the “Orange Book”) for RECORLEV® (levoketoconazole). Plaintiffs own all rights, title, and interest in and to the ’393 Patent. There is an actual case or controversy between the parties regarding the Novitium Defendants’ liability for their infringement of the ’393 Patent.

39. On March 22, 2022, the USPTO duly and legally issued the ’547 Patent entitled “Methods of Treating Disease With Levoketoconazole.” A true and correct copy of the ’547 Patent is attached as Exhibit B. The ’547 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole). Plaintiffs own all rights, title, and interest in and to the ’547 Patent. There is an actual case or controversy between the parties regarding the Novitium Defendants’ liability for their infringement of the ’547 Patent.

40. On February 20, 2024, the USPTO duly and legally issued the ’940 Patent entitled “Methods of Treating Disease With Levoketoconazole.” A true and correct copy of the ’940 Patent is attached as Exhibit C. The ’940 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole). Plaintiffs own all rights, title, and interest in and to the ’940 Patent. There is an actual case or controversy between the parties regarding the Novitium Defendants’ liability for their infringement of the ’940 Patent.

41. On August 5, 2025, the USPTO duly and legally issued the ’096 Patent entitled “Methods of Treating Disease With Levoketoconazole.” A true and correct copy of the ’096 Patent

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is attached as Exhibit D. The ’096 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole). Plaintiffs own all rights, title, and interest in and to the ’096 Patent. There is an actual case or controversy between the parties regarding the Novitium Defendants’ liability for their infringement of the ’096 Patent.

RECORLEV® AND DRUG-DRUG INTERACTIONS

42. Ketoconazole is an antiandrogen, antifungal, and antiglucocorticoid medication commonly used to treat fungal infections. Historically, ketoconazole has been used in the U.S. off-label to treat Cushing’s syndrome and was the most frequently prescribed medication for Cushing’s syndrome. Exhibit A (’393 Patent) at 1:45-51.

43. However, ketoconazole has several known risks, including hepatotoxicity (i.e., chemical-driven liver damage), elevated levels of transaminases (i.e., indicating liver inflammation or injury), and potentially inhibiting several drug metabolizing enzymes such as CYP3A4. Id. at 1:40-43. Ketoconazole also exhibits several drug interactions, including those leading to an increased risk of QT prolongation (i.e., an abnormality in which the heart takes longer than normal to recharge between beats that may cause fainting, seizures or sudden cardiac arrests). Id. at 1:42-45.

44. Based on these risks, there was a strong unmet need for a safe, FDA-approved therapy to treat Cushing’s syndrome.

Id. at 1:49-50. Strongbridge discovered that levoketoconazole, the 2S,4R enantiomer of ketoconazole (chemical name: 2S,4R cis-1-acetyl-4-[4-[[2-(2,4-dichlorophenyl)-2-(1H-imidazol-1-yl)methyl]-1,3-dioxolan-4-yl] methoxyl]phenyl] piperazine), more potently inhibits key enzymes involved in cortisol biosynthesis than ketoconazole. Id. at 1:51-59.

45. During the development of RECORLEV®, the inventors ran drug-drug interaction studies to further evaluate levoketoconazole. Strongbridge scientists used metformin, a commonly

prescribed medication to treat type 2 diabetes, and an OCT2 and MATE1 inhibitor, in a drug-drug interaction study. Id. at 17:50-53. That study yielded previously undescribed effects of levoketoconazole, including that administration of levoketoconazole increases exposure to metformin nearly two-fold. Id. at 23:20-25. The study also demonstrated that levoketoconazole inhibited OCT2 in vitro, a previously unknown and clinically significant fact. Id. at 23:61-67.

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The DDI section as it appears in the FDA-approved RECORLEV®

Label is reproduced below:

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Exhibit E at 1. A true, correct, and complete copy of the current FDA-approved Prescribing Information for RECORLEV® is attached as Exhibit E.

52. Based on the FDA's December 23, 2021 revisions to the RECORLEV® Label, on information and belief, the FDA will not approve any ANDA for generic levoketoconazole whose label does not include Drug Interaction for the use of levoketoconazole in combination with metformin.

53. The FDA approved RECORLEV® on December 30, 2021. It is indicated for the treatment of endogenous hypercortisolemia in adult patients with Cushing's syndrome for whom surgery is not an option or has not been curative. The RECORLEV® label identifies metformin as an OCT2 and MATE1 substrate. Exhibit E at 13. On information and belief, at least some RECORLEV® patients are co-administered metformin for the treatment of type 2 diabetes mellitus.

NOVITIUM'S ANDA NO. 221336

54. The Novitium Defendants submitted Novitium's ANDA which seeks approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of a purported generic version of RECORLEV® (levoketoconazole) 150 mg tablets prior to the expiration of the Asserted Patents.

55. On information and belief, FDA has not approved or tentatively approved Novitium's ANDA.

56. Novitium Pharma, LLC sent Plaintiffs a Notice Letter dated April 24, 2026 (attached hereto as Exhibit H). Xeris received the Notice Letter on April 27, 2026.

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57. According to applicable regulations, Notice Letter such as Novitium Pharma, LLC's must contain a detailed statement of the factual and legal basis for the applicant's opinion that the patent is invalid, unenforceable, or not infringed which includes a claim-by-claim analysis, describing "for each claim of a patent alleged not to be infringed, a full and detailed explanation of why the claim is not infringed" and "for each claim of a patent alleged to be invalid or unenforceable, a full and detailed explanation of the grounds supporting the allegation." See 21 C.F.R. § 314.95(c)(7); see also 21 C.F.R. § 314.52.

58. On information and belief, the Novitium Defendants were aware of the Asserted Patents when they filed Novitium's ANDA with a Paragraph IV Certification.

59. Levoketoconazole is the active ingredient in the Novitium ANDA Product and the Novitium ANDA Product is levoketoconazole tablets, oral, 150 mg per tablet.

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60. On information and belief, Novitium's ANDA refers to and relies upon the RECORLEV® NDA and contains data that, according to the Novitium Defendants, demonstrates bioequivalence of the Novitium ANDA Product and RECORLEV® (levoketoconazole), see 21

U.S.C. § 355(j)(2); 21 C.F.R. § 314.94(a)(7), or the Novitium Defendants have sought a waiver of the requirement to demonstrate bioequivalence of the Novitium ANDA Product and RECORLEV® (levoketoconazole). On information and belief, in the event the FDA approves Novitium's ANDA, the Novitium ANDA Product's label must contain the same Drug Interaction instructions as contained in the RECORLEV® label in order to receive FDA approval and demonstrate bioequivalence to RECORLEV®. See Exhibit G at 2.

61. On information and belief, the FDA-approved Novitium ANDA Product label will inform prescribers of several Drug Interactions warnings, including “
” See Exhibit G at 2. On information and belief, the
approved Novitium ANDA Product label will instruct prescribers to “
” when RECORLEV® is prescribed in conjunction with other medication. See
Exhibit F at 15.

62. On information and belief, the Novitium Defendants intend to have healthcare providers use the Novitium ANDA Product, if approved, as set forth in the Novitium ANDA Product label. On information and belief, the Novitium ANDA Product Label, if approved, will instruct prescribers to monitor patients when administered the Novitium ANDA Product in conjunction with any CYP3A4, P-gp, MATE1 or OCT2 substrate, CYP3A4 inhibitor, Atorvastatin, Metformin, or Gastric Acid Modulators, and subsequently adjust the dosage of the CYP3A4, P-gp, MATE1 or OCT2 substrate, CYP3A4 inhibitor, Atorvastatin, Metformin, or
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Gastric Acid Modulators in the patient to treat persistent or recurrent Cushing's syndrome in a patient who also has type 2 diabetes mellitus.

63. On information and belief, if the FDA approves Novitium's ANDA, the Novitium Defendants will manufacture, offer for sale, or sell the Novitium ANDA Product, within the United States, including within the State of New Jersey, or will import the Novitium ANDA Product into the United States, including the State of New Jersey. On information and belief, the manufacture, use, offer for sale, sale, or importation of the Novitium ANDA Product will directly infringe the Asserted Patents, either literally or under the doctrine of equivalents, and the Novitium Defendants will actively induce and/or contribute to the infringement of those patents.

64. This action is being brought within forty-five days of Plaintiffs' receipt of Novitium Pharma, LLC's Notice Letter. Accordingly, Plaintiffs are entitled to a stay of FDA approval pursuant to 21 U.S.C. § 355(j)(5)(B)(iii) and 21 U.S.C. § 355(j)(5)(F)(ii) until June 30, 2029, due to RECORLEV®'s New Chemical Entity status.

65. On information and belief, additional evidence gathered in future discovery from the Novitium Defendants will confirm both actual infringement and an intent to induce infringement. On information and belief, the Novitium Defendants' communications with FDA regarding the scope of Novitium's ANDA label will demonstrate that the Novitium Defendants had knowledge of the Asserted Patents and specific intent to induce infringement thereof. On information and belief, the Novitium Defendants' internal communications, business analyses, and marketing and strategic planning documents will further reveal that the Novitium Defendants anticipated, targeted, and were aware that the Novitium ANDA Product and its proposed labeling would induce and contribute to infringement of the Asserted Patents.

COUNT I — INFRINGEMENT OF THE '393 PATENT BY NOVITIUM

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66. Plaintiffs restate, reallege, and incorporate each of the preceding paragraphs as if fully set forth herein.

67. Claim 1 of the '393 Patent recites the following:

A method of treating persistent or recurrent Cushing's syndrome in a subject in need thereof, wherein the subject also has type 2 diabetes mellitus and is being co-administered metformin, or a pharmaceutically acceptable salt thereof, to improve

glycemic control, comprising:

administering a therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, to the subject in need thereof, wherein the therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, is determined via a titration scheme, during the levoketoconazole titration scheme, monitoring the subject for a dose limiting event wherein the dose limiting event is a decreased fasting glucose level abnormal kidney function, and/or a low Vitamin B-12 level; and if the subject experiences a dose limiting event, reducing the amount of metformin, or a pharmaceutically acceptable salt thereof, administered to the subject.

68. On information and belief, the Novitium ANDA Product is covered by one or more claims of the '393 Patent, including at least claim 1, because the label for the Novitium ANDA Product will induce clinicians to practice the treatment of persistent or recurrent Cushing's syndrome in adult patients who also have type 2 diabetes mellitus and are being co-administered metformin to improve glycemic control, by administering a therapeutically effective amount of levoketoconazole determined via a titration scheme, monitoring the subject for a dose limiting event such as a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level during the levoketoconazole titration scheme, and reducing the amount of metformin administered to the subject if the subject experiences a dose limiting event, as further evidenced by future discovery from the Novitium Defendants in the form of FDA correspondence, internal communications, business analyses, and/or marketing and strategic planning documents.

69. On information and belief, the Novitium Defendants know that clinicians frequently prescribe levoketoconazole in combination with metformin. On information and belief, 19

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the Novitium Defendants know that metformin is an OCT2 and MATE1 substrate at least because the RECORLEV® label identifies metformin as an OCT2 and MATE1 substrate.

70. On information and belief, the Novitium Defendants filed and are pursuing the Novitium ANDA Product with the knowledge and intent that the Novitium ANDA Product, if approved, would be used in patients with Cushing's syndrome who are co-administered metformin. On information and belief, when healthcare provider(s) prescribe the Novitium ANDA Product to such patients, those healthcare provider(s) will direct or control the performance of each step of the claimed methods, including the administration of levoketoconazole, the monitoring for dose-limiting events, and the reduction of metformin dosage. Patients who take the Novitium ANDA Product will do so under the direction and control of their prescribing healthcare provider(s), who will establish the treatment regimen, monitor for adverse events, and adjust co-administered medications as necessary. The prescribing healthcare provider(s) will condition their patients' participation in the treatment on the patients' performance of each required step, and the healthcare provider(s) will establish the manner and timing of such performance. Accordingly, the prescribing healthcare provider(s) will perform or direct and control the performance of each and every step of the methods claimed in the '393 Patent, and will therefore directly infringe those patents when they prescribe the Novitium ANDA Product in accordance with the Novitium ANDA Product proposed labeling.

71. On information and belief, the Novitium Defendants do not intend to take any actions to discourage the use of the Novitium ANDA Product in in patients with Cushing's syndrome for the treatment of type 2 diabetes mellitus who are co-administered metformin or other OCT2 and/or MATE1 substrates.

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72. On information and belief, if the Novitium Defendants were to obtain FDA approval to market and sell the Novitium ANDA Product, they would market and sell it to hospitals

and/or group purchasing organizations (“GPOs”) and other distributors throughout the United States, including in this District, as a generic substitute for RECORLEV® to be used and administered in the same manner as RECORLEV®. Accordingly, the Novitium Defendants will have to use their sales force to affirmatively market the Novitium ANDA Product to hospitals and GPOs and try to convince them to switch from RECORLEV® to the Novitium ANDA Product. In doing so, the Novitium Defendants’ sales force will make affirmative representations to its customers that the Novitium ANDA Product is equivalent to RECORLEV® and can and should be administered in the same manner as RECORLEV®.

73. On information and belief, the current proposed label for the Novitium ANDA Product induces direct infringement of the ’393 Patent because it includes Drug Interaction instructions directing healthcare providers to monitor patients who are co-administered an OCT2 and/or MATE1 substrate, including metformin, for dose-limiting events such as decreased fasting glucose levels, abnormal kidney function, and/or low Vitamin B-12 levels during levoketoconazole titration, and to reduce the dosage of the co-administered OCT2 and/or MATE1 substrate if the patient experiences such a dose-limiting event, thereby instructing healthcare providers to perform each and every step of the method claimed in at least claim 1 of the ’393 Patent.

74. For the reasons detailed above, on information and belief, upon approval, the proposed label for the Novitium ANDA Product will copy the entirety of the Drug Interaction language from the RECORLEV® label and therefore include specific instructions directing physicians and other medical professionals to use the product in accordance with the methods claimed in the ’393 Patent, thereby inducing direct infringement.

75. On information and belief, upon FDA approval, the Novitium Defendants will market and sell the Novitium ANDA Product as a generic substitute for RECORLEV® to be used and administered in the same manner as RECORLEV®, with the knowledge and expectation that physicians will treat patients based on the most up-to-date clinical information available—including by treating patients in accordance with the treatment regimes claimed in the ’393 Patent, i.e., by administering a therapeutically effective amount of levoketoconazole determined via a titration scheme, monitoring the subject for a dose limiting event such as a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level during the levoketoconazole titration scheme, and reducing the amount of metformin administered to the subject if the subject experiences a dose limiting event.

76. On information and belief, Plaintiffs expect that the Novitium Defendants will act in accordance with the best interests of patients and that, in doing so, the Novitium Defendants will market and sell the Novitium ANDA Product (if approved) with explicit or implicit instructions, and the specific intent, that its product be used in accordance with Plaintiffs’ patented treatment regimens. In these ways, the Novitium Defendants would be inducing infringement of at least claim 1 of the ’393 Patent.

77. Novitium Pharma, LLC did not contend or make noninfringement arguments for each claim in its Notice Letter that the Novitium ANDA Product, or the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling would not infringe the claims of the ’393 Patent.

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78. The purpose of submitting Novitium’s ANDA to FDA was to obtain approval under the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. § 301 et seq., (“FDCA”) to engage in the commercial manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product prior to the expiration of the ’393 Patent.

79. The Novitium Defendants’ submission of Novitium’s ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product prior to the expiration of the ’393 Patent was an act of infringement of the ’393 Patent under 35 U.S.C. § 271(e)(2)(A).

80. On information and belief, the Novitium Defendants intend to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA and any amendments thereto, i.e., prior to the expiration of the '393 Patent.

81. On information and belief, the Novitium Defendants have knowledge of the '393 Patent at least because the '393 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole) drug product. Notwithstanding this knowledge, the Novitium Defendants continue to assert their intent to engage in the manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA and any amendments thereto.

82. The Novitium Defendants had actual and constructive notice of the '393 Patent prior to submitting Novitium's ANDA, and were aware that the submissions of Novitium's ANDA with the request for FDA approval prior to the expiration of the '393 Patent would constitute an act of infringement of the '393 Patent.

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83. On information and belief, the Novitium Defendants know that the Novitium ANDA Product is especially made or adapted for use in infringing the '393 Patent, and that the Novitium ANDA Product is not a staple article of commerce suitable for substantial noninfringing use. On information and belief, the Novitium Defendants plan and intend to, and will, contribute to infringement of the '393 Patent immediately and imminently upon approval of Novitium's ANDA and any amendments thereto.

84. The foregoing actions by the Novitium Defendants constitutes and/or will constitute infringement of the '393 Patent, active inducement of infringement of the '393 Patent, and contribution to the infringement of the '393 Patent, either literally or under the doctrine of equivalents, pursuant to 35 U.S.C. §§ 271(b) and (c).

85. The Novitium Defendants filed Novitium's ANDA without adequate justification for asserting that the '393 Patent is invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the Novitium ANDA Product. The Novitium Defendants' conduct in certifying invalidity and/or noninfringement with respect to the '393 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285, and entitles Plaintiffs to recovery of its attorneys' fees and such other relief as this Court deems proper.

86. Unless the Novitium Defendants are enjoined from infringing the '393 Patent and actively inducing and contributing to infringement of the '393 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law, and considering the balance of hardships between Plaintiffs and the Novitium Defendants, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

COUNT II — INFRINGEMENT OF THE '547 PATENT BY NOVITIUM

87. Plaintiffs restate, reallege, and incorporate each of the preceding paragraphs as if fully set forth herein.

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88. Claim 1 of the '547 Patent recites the following:

A method of treating Cushing's syndrome in a subject in need thereof, wherein the subject also has type 2 diabetes mellitus and is being co-administered metformin, or a pharmaceutically acceptable salt thereof, to improve glycemic control and wherein the subject has had previous surgery or radiation to treat the subject's Cushing syndrome, comprising:

administering a therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, to the subject in need thereof, wherein the therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, is determined via a titration scheme,

during the levoketoconazole titration scheme, monitoring the subject for a dose limiting event wherein the dose limiting event is a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level; and if the subject experiences a dose limiting event, reducing the amount of metformin, or a pharmaceutically acceptable salt thereof, administered to the subject.

89. On information and belief, the Novitium ANDA Product is covered by one or more claims of the '547 Patent, including at least claim 1, because the use of the Novitium ANDA Product will induce to practice the treatment of persistent or recurrent Cushing's syndrome in adult patients who also have type 2 diabetes mellitus and are being co-administered metformin to improve glycemic control, by administering a therapeutically effective amount of levoketoconazole determined via a titration scheme, monitoring the subject for a dose limiting event such as a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level during the levoketoconazole titration scheme, and reducing the amount of metformin administered to the subject if the subject experiences a dose limiting event, as further evidenced by future discovery from the Novitium Defendants in the form of FDA correspondence, internal communications, business analyses, and/or marketing and strategic planning documents.

90. On information and belief, the Novitium Defendants know that clinicians frequently prescribe levoketoconazole in combination with metformin. On information and belief,

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the Novitium Defendants know that metformin is an OCT2 and MATE1 substrate at least because the RECORLEV® label identifies metformin as an OCT2 and MATE1 substrate.

91. On information and belief, the Novitium Defendants filed and are pursuing the Novitium ANDA Product with the knowledge and intent that the Novitium ANDA Product, if approved, would be used in patients with Cushing's syndrome who are coadministered metformin. On information and belief, when healthcare provider(s) prescribe the Novitium ANDA Product to such patients, those healthcare provider(s) will direct or control the performance of each step of the claimed methods, including the administration of levoketoconazole, the monitoring for dose-limiting events, and the reduction of metformin dosage. Patients who take the Novitium ANDA Product will do so under the direction and control of their prescribing healthcare provider(s), who will establish the treatment regimen, monitor for adverse events, and adjust co-administered medications as necessary. The prescribing healthcare provider(s) will condition their patients' participation in the treatment on the patients' performance of each required step, and the healthcare provider(s) will establish the manner and timing of such performance. Accordingly, the prescribing healthcare provider(s) will perform or direct and control the performance of each and every step of the methods claimed in the '547 Patent, and will therefore directly infringe those patents when they prescribe the Novitium ANDA Product in accordance with the Novitium ANDA Product proposed labeling.

92. On information and belief, the Novitium Defendants do not intend to take any actions to discourage the use of the Novitium ANDA Product in patients with Cushing's syndrome for the treatment of type 2 diabetes mellitus who are co-administered metformin or other OCT2 and/or MATE1 substrates.

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93. On information and belief, if the Novitium Defendants were to obtain FDA approval to market and sell the Novitium ANDA Product, it would market and sell it to hospitals and/or group purchasing organizations ("GPOs") and other distributors throughout the United States, including in this District, as a generic substitute for RECORLEV® to be used and administered in the same manner as RECORLEV®. Accordingly, the Novitium Defendants will have to use their sales force to affirmatively market the Novitium ANDA Product to hospitals and GPOs and try to convince them to switch from RECORLEV® to the Novitium ANDA Product.

In doing so, the Novitium Defendants' sales force will make affirmative representations to its customers that the Novitium ANDA Product is equivalent to RECORLEV® and can and should be administered in the same manner as RECORLEV®.

94. On information and belief, the current proposed label for the Novitium ANDA Product induces direct infringement of the '547 Patent because it includes Drug Interaction instructions directing healthcare providers to monitor patients who are co-administered an OCT2 and/or MATE1 substrate, including metformin, for dose-limiting events such as decreased fasting glucose levels, abnormal kidney function, and/or low Vitamin B-12 levels during levoketoconazole titration, and to reduce the dosage of the co-administered OCT2 and/or MATE1 substrate if the patient experiences such a dose-limiting event, thereby instructing healthcare providers to perform each and every step of the method claimed in at least claim 1 of the '547 Patent.

95. For the reasons detailed above, on information and belief, upon approval, the proposed label for the Novitium ANDA Product will copy the entirety of the Drug Interaction language from the RECORLEV® label and therefore include specific instructions directing

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physicians and other medical professionals to use the product in accordance with the methods claimed in the '547 Patent, thereby inducing direct infringement.

96. On information and belief, upon FDA approval, the Novitium Defendants will market and sell the Novitium ANDA Product as a generic substitute for RECORLEV® to be used and administered in the same manner as RECORLEV®, with the knowledge and expectation that physicians will treat patients based on the most up-to-date clinical information available—including by treating patients in accordance with the treatment regimes claimed in the '547 Patent, i.e., by administering a therapeutically effective amount of levoketoconazole determined via a titration scheme, monitoring the subject for a dose limiting event such as a decreased fasting glucose level, abnormal kidney function, and/or a low Vitamin B-12 level during the levoketoconazole titration scheme, and reducing the amount of metformin administered to the subject if the subject experiences a dose limiting event.

97. On information and belief, Plaintiffs expect that the Novitium Defendants will act in accordance with the best interests of patients and that, in doing so, the Novitium Defendants will market and sell the Novitium ANDA Product (if approved) with explicit or implicit instructions, and the specific intent, that its product be used in accordance with Plaintiffs' patented treatment regimens. In these ways, the Novitium Defendants would be inducing infringement of at least claim 1 of the '547 Patent.

98. Novitium Pharma, LLC did not contend or make noninfringement arguments for each claim in its Notice Letter that the Novitium ANDA Product, or the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling would not infringe the claims of the '547 Patent.

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99. The purpose of submitting Novitium's ANDA to FDA was to obtain approval under the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. § 301 et seq., ("FDCA") to engage in the commercial manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product prior to the expiration of the '547 Patent.

100. The Novitium Defendants' submission of Novitium's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product prior to the expiration of the '547 Patent was an act of infringement of the '547 Patent under 35 U.S.C. § 271(e)(2)(A).

101. On information and belief, the Novitium Defendants intend to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA

and any amendments thereto, i.e., prior to the expiration of the '547 Patent.

102. On information and belief, the Novitium Defendants have knowledge of the '547 Patent at least because the '547 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole) drug product. Notwithstanding this knowledge, the Novitium Defendants continue to assert their intent to engage in the manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA and any amendments thereto.

103. The Novitium Defendants had actual and constructive notice of the '547 Patent prior to submitting Novitium's ANDA, and were aware that the submissions of Novitium's ANDA with the request for FDA approval prior to the expiration of the '547 Patent would constitute an act of infringement of the '547 Patent.

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104. On information and belief, the Novitium Defendants know that the Novitium ANDA Product is especially made or adapted for use in infringing the '547 Patent, and that the Novitium ANDA Product is not a staple article of commerce suitable for substantial noninfringing use. On information and belief, the Novitium Defendants plan and intend to, and will, contribute to infringement of the '547 Patent immediately and imminently upon approval of Novitium's ANDA and any amendments thereto.

105. The foregoing actions by the Novitium Defendants constitutes and/or will constitute infringement of the '547 Patent, active inducement of infringement of the '547 Patent, and contribution to the infringement of the '547 Patent, either literally or under the doctrine of equivalents, pursuant to 35 U.S.C. §§ 271(b) and (c).

106. The Novitium Defendants filed Novitium's ANDA without adequate justification for asserting that the '547 Patent is invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the Novitium ANDA Product. The Novitium Defendants' conduct in certifying invalidity and/or noninfringement with respect to the '547 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285, and entitles Plaintiffs to recovery of its attorneys' fees and such other relief as this Court deems proper.

107. Unless the Novitium Defendants are enjoined from infringing the '547 Patent and actively inducing and contributing to infringement of the '547 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law, and considering the balance of hardships between Plaintiffs and the Novitium Defendants, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

COUNT III — INFRINGEMENT OF THE '940 PATENT BY NOVITIUM

108. Plaintiffs restate, reallege, and incorporate each of the preceding paragraphs as if fully set forth herein.

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109. Claim 1 of the '940 Patent recites the following:

A method of treating persistent or recurrent Cushing's syndrome in a subject in need thereof, wherein the subject is being coadministered an organic cation transporter 2 (OCT2) substrate, or a pharmaceutically acceptable salt thereof, comprising:

administering a therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, to the subject in need thereof, wherein the therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, is determined via a titration scheme,

during the levoketoconazole titration scheme, monitoring the subject for a dose limiting event, wherein the dose limiting event is due to increased exposure to the OCT2 substrate; and

if the subject experiences a dose limiting event, reducing the amount of the OCT2

substrate, or a pharmaceutically acceptable salt thereof, administered to the subject.

110. On information and belief, the Novitium ANDA Product is covered by one or more claims of the '940 Patent, including at least claim 1, because the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling involves treating persistent or recurrent Cushing's syndrome in adult patients who are being co-administered an organic cation transporter 2 (OCT2) substrate, such as metformin, by administering a therapeutically effective amount of levoketoconazole determined via a titration scheme, monitoring the subject for a dose limiting event due to increased exposure to the OCT2 substrate during the levoketoconazole titration scheme, and reducing the amount of the OCT2 substrate administered to the subject if the subject experiences a dose limiting event.

111. On information and belief, the use of the Novitium ANDA Product in accordance with the Novitium ANDA Product proposed labeling involves the co-administration of metformin to patients with Cushing's syndrome who also have type 2 diabetes mellitus. On information and belief, the Novitium ANDA Product proposed labeling instructs healthcare provider(s) to monitor patients who are co-administered metformin or other OCT2 and/or MATE1 substrates for dose-limiting adverse events and to adjust the metformin dosage accordingly. On information and belief, when healthcare provider(s) prescribe the Novitium ANDA Product to such patients, those healthcare provider(s) will direct or control the performance of each step of the claimed methods, including the administration of levoketoconazole, the monitoring for dose-limiting events, and the reduction of metformin dosage. Patients who take the Novitium ANDA Product will do so under the direction and control of their prescribing healthcare provider(s), who will establish the treatment regimen, monitor for adverse events, and adjust co-administered medications as necessary. The prescribing healthcare provider(s) will condition their patients' participation in the treatment on the patients' performance of each required step, and the healthcare provider(s) will establish the manner and timing of such performance. Accordingly, the prescribing healthcare provider(s) will perform or direct and control the performance of each and every step of the methods claimed in the '940 Patent, and will therefore directly infringe those patents when they prescribe the Novitium ANDA Product in accordance with the Novitium ANDA Product proposed labeling.

112. On information and belief, the Novitium Defendants intend to sell the Novitium ANDA Product with a label that includes instructions to administer levoketoconazole to treat Cushing's syndrome patients in a manner that will infringe at least claim 1 of the '940 Patent.

113. On information and belief, the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling will infringe at least claim 1 of the '940 Patent, either literally or under the doctrine of equivalents.

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115. Novitium Pharma, LLC did not contend or make detailed noninfringement arguments for each claim in its Notice Letter that the Novitium ANDA Product, or the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling would not infringe the claims of the '940 Patent.

116. The purpose of submitting Novitium's ANDA to FDA was to obtain approval under the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product prior to the expiration of the '940 Patent.

117. The Novitium Defendants' submission of Novitium's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product prior to the expiration of the '940 Patent was an act of infringement of the '940 Patent under 35 U.S.C. § 271(e)(2)(A).

118. On information and belief, the Novitium Defendants intend to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA

and any amendments thereto, i.e., prior to the expiration of the '940 Patent.

119. On information and belief, the Novitium Defendants have knowledge of the '940 Patent at least because the '940 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole) drug product. Notwithstanding this knowledge, the Novitium Defendants continue to assert their intent to engage in the manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA and any amendments thereto.

120. The Novitium Defendants had actual and constructive notice of the '940 Patent prior to submitting Novitium's ANDA, and were aware that the submissions of Novitium's ANDA

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with the request for FDA approval prior to the expiration of the '940 Patent would constitute an act of infringement of the '940 Patent.

121. On information and belief, the Novitium Defendants plan and intend to, and will, actively induce infringement of the '940 Patent when Novitium's ANDA and any amendments thereto are approved by selling the Novitium ANDA Product with a label that provides instructions to administer levoketoconazole to treat Cushing's syndrome patients in a manner that infringes claims of the '940 Patent, and will do so with specific intent to induce infringement of the '940 Patent. Further, on information and belief, the Novitium Defendants plan and intend to, and will, do so immediately and imminently upon approval.

122. On information and belief, the Novitium Defendants know that the Novitium ANDA Product is especially made or adapted for use in infringing the '940 Patent, and that the Novitium ANDA Product is not a staple article of commerce suitable for substantial noninfringing use. On information and belief, the Novitium Defendants plan and intend to, and will, contribute to infringement of the '940 Patent immediately and imminently upon approval of Novitium's ANDA and any amendments thereto.

123. The foregoing actions by the Novitium Defendants constitute and/or will constitute infringement of the '940 Patent, active inducement of infringement of the '940 Patent, and contribution to the infringement of the '940 Patent, either literally or under the doctrine of equivalents, pursuant to 35 U.S.C. §§ 271(b) and (c).

124. The Novitium Defendants filed Novitium's ANDA without adequate justification for asserting that the '940 Patent is invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the Novitium ANDA Product. The Novitium Defendants' conduct in certifying invalidity and/or noninfringement with respect to the '940 Patent

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renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285, and entitles Plaintiffs to recovery of its attorneys' fees and such other relief as this Court deems proper.

125. Unless the Novitium Defendants are enjoined from infringing the '940 Patent and actively inducing and contributing to infringement of the '940 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law, and considering the balance of hardships between Plaintiffs and the Novitium Defendants, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

COUNT IV — INFRINGEMENT OF THE '096 PATENT BY NOVITIUM

126. Plaintiffs restate, reallege, and incorporate each of the preceding paragraphs as if fully set forth herein.

127. Claim 1 of the '096 Patent recites the following:

A method of treating persistent or recurrent Cushing's syndrome in a subject in need thereof, wherein the subject is being coadministered a multidrug and toxin extrusion transporter 1 (MATE1) substrate, or a pharmaceutically acceptable salt thereof, comprising:

administering a therapeutically effective amount of levoketoconazole, or a

pharmaceutically acceptable salt thereof, to the subject in need thereof, wherein the therapeutically effective amount of levoketoconazole, or a pharmaceutically acceptable salt thereof, is determined via a titration scheme;

during the levoketoconazole titration scheme, monitoring the subject for a dose limiting event, wherein the dose limiting event is due to increased exposure to the MATE1 substrate; and

if the subject experiences a dose limiting event, reducing the amount of the MATE1 substrate, or a pharmaceutically acceptable salt thereof, administered to the subject.

128. On information and belief, the Novitium ANDA Product is covered by one or more claims of the '096 Patent, including at least claim 1, because the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling involves treating persistent or recurrent Cushing's syndrome in adult patients who are being co-administered a multidrug and toxin extrusion transporter 1 (MATE1) substrate, such as metformin,

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by administering a therapeutically effective amount of levoketoconazole determined via a titration scheme, monitoring the subject for a dose limiting event due to increased exposure to the MATE1 substrate during the levoketoconazole titration scheme, and reducing the amount of the MATE1 substrate administered to the subject if the subject experiences a dose limiting event.

129. On information and belief, the use of the Novitium ANDA Product in accordance with the Novitium ANDA Product proposed labeling involves the co-administration of metformin to patients with Cushing's syndrome who also have type 2 diabetes mellitus. On information and belief, the Novitium ANDA Product proposed labeling instructs healthcare provider(s) to monitor patients who are co-administered metformin or other OCT2 and/or MATE1 substrates for dose-limiting adverse events and to adjust the metformin dosage accordingly. On information and belief, when healthcare provider(s) prescribe the Novitium ANDA Product to such patients, those healthcare provider(s) will direct or control the performance of each step of the claimed methods, including the administration of levoketoconazole, the monitoring for dose-limiting events, and the reduction of metformin dosage. Patients who take the Novitium ANDA Product will do so under the direction and control of their prescribing healthcare provider(s), who will establish the treatment regimen, monitor for adverse events, and adjust co-administered medications as necessary. The prescribing healthcare provider(s) will condition their patients' participation in the treatment on the patients' performance of each required step, and the healthcare provider(s) will establish the manner and timing of such performance. Accordingly, the prescribing healthcare provider(s) will perform or direct and control the performance of each and every step of the methods claimed in the '096 Patent, and will therefore directly infringe those patents when they prescribe the Novitium ANDA Product in accordance with the Novitium ANDA Product proposed labeling.

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130. On information and belief, the Novitium Defendants intend to sell the Novitium ANDA Product with a label that includes instructions to administer levoketoconazole to treat Cushing's syndrome patients in a manner that will infringe at least claim 1 of the '096 Patent.

131. On information and belief, the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling will infringe at least claim 1 of the '096 Patent, either literally or under the doctrine of equivalents.

133. Novitium Pharma, LLC did not contend or make detailed noninfringement arguments for each claim in its Notice Letter that the Novitium ANDA Product, or the use of the Novitium ANDA Product in accordance with and as directed by the Novitium ANDA Product proposed labeling would not infringe the claims of the '096 Patent.

134. The purpose of submitting Novitium's ANDA to FDA was to obtain approval under

the FDCA to engage in the commercial manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product prior to the expiration of the '096 Patent.

135. The Novitium Defendants' submission of Novitium's ANDA for the purpose of obtaining approval to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product prior to the expiration of the '096 Patent was an act of infringement of the '096 Patent under 35 U.S.C. § 271(e)(2)(A).

136. On information and belief, the Novitium Defendants intend to engage in the commercial manufacture, use, sale and/or offer for sale of the Novitium ANDA Product and the

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proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA and any amendments thereto, i.e., prior to the expiration of the '096 Patent.

137. On information and belief, the Novitium Defendants have knowledge of the '096 Patent at least because the '096 Patent is listed in the Orange Book for RECORLEV® (levoketoconazole) drug product. Notwithstanding this knowledge, the Novitium Defendants continue to assert their intent to engage in the manufacture, use, offer for sale, and/or sale of the Novitium ANDA Product and the proposed labeling therefor immediately and imminently upon the approval of Novitium's ANDA and any amendments thereto.

138. The Novitium Defendants had actual and constructive notice of the '096 Patent prior to submitting Novitium's ANDA, and were aware that the submissions of Novitium's ANDA with the request for FDA approval prior to the expiration of the '096 Patent would constitute an act of infringement of the '096 Patent.

139. On information and belief, the Novitium Defendants plan and intend to, and will, actively induce infringement of the '096 Patent when Novitium's ANDA and any amendments thereto are approved by selling the Novitium ANDA Product with a label that provides instructions to administer levoketoconazole to treat Cushing's syndrome patients in a manner that infringes claims of the '096 Patent, and will do so with specific intent to induce infringement of the '096 Patent. Further, on information and belief, the Novitium Defendants plan and intend to, and will, do so immediately and imminently upon approval.

140. On information and belief, the Novitium Defendants know that the Novitium ANDA Product is especially made or adapted for use in infringing the '096 Patent, and that the Novitium ANDA Product is not a staple article of commerce suitable for substantial noninfringing use. On information and belief, the Novitium Defendants plan and intend to, and will, contribute

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to infringement of the '096 Patent immediately and imminently upon approval of Novitium's ANDA and any amendments thereto.

141. The foregoing actions by the Novitium Defendants constitute and/or will constitute infringement of the '096 Patent, active inducement of infringement of the '096 Patent, and contribution to the infringement of the '096 Patent, either literally or under the doctrine of equivalents, pursuant to 35 U.S.C. §§ 271(b) and (c).

142. The Novitium Defendants filed Novitium's ANDA without adequate justification for asserting that the '096 Patent is invalid, unenforceable, and/or not infringed by the commercial manufacture, use, offer for sale, or sale of the Novitium ANDA Product. The Novitium Defendants' conduct in certifying invalidity and/or noninfringement with respect to the '096 Patent renders this case "exceptional" as that term is set forth in 35 U.S.C. § 285, and entitles Plaintiffs to recovery of its attorneys' fees and such other relief as this Court deems proper.

143. Unless the Novitium Defendants are enjoined from infringing the '096 Patent and actively inducing and contributing to infringement of the '096 Patent, Plaintiffs will suffer irreparable injury. Plaintiffs have no adequate remedy at law, and considering the balance of hardships between Plaintiffs and the Novitium Defendants, a remedy in equity is warranted. Further, the public interest would not be disserved by the entry of a permanent injunction.

REQUEST FOR RELIEF

WHEREFORE, Plaintiffs respectfully request the following relief:

- (a) A judgment that the Novitium Defendants' submission of Novitium's ANDA to FDA was an act of infringement of one or more claims of the Asserted Patents;
- (b) A judgment that the Novitium Defendants' making, using, offering to sell, selling, marketing, distributing, or importing into the United States the Novitium ANDA Product prior to

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the expiration of the Asserted Patents will infringe, will actively induce infringement, and/or will contribute to infringement of one or more claims of the Asserted Patents pursuant to 35 U.S.C. § 271(b), and/or (c);

(c) An Order pursuant to 35 U.S.C. § 271(e)(4)(A) providing that the effective date of any FDA approval Novitium's ANDA for the Novitium Defendants to make, use, offer for sale, sell, market, distribute, or import the Novitium ANDA Product, or any product the use of which infringes the Asserted Patents, be not earlier than the expiration date of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(d) A permanent injunction pursuant to 35 U.S.C. § 271(e)(4)(B) enjoining the Novitium Defendants, Novitium Defendants' affiliates and subsidiaries, each of their officers, agents, servants and employees, and any person acting in concert with the Novitium Defendants, from making, using, selling, offering to sell, marketing, distributing, or importing the Novitium ANDA Product, or any product the use of which infringes the Asserted Patents, or the inducement of any of the foregoing, prior to the expiration date of the Asserted Patents, inclusive of any extension(s) and additional period(s) of exclusivity;

(e) An award of damages or other relief, pursuant to 35 U.S.C. § 271(e)(4)(C), if the Novitium Defendants engage in the commercial manufacture, use, offer for sale, sale, and/or importation of the Novitium ANDA Product, or any product that infringes the Asserted Patents, or induce or contribute to such conduct prior to expiration of the Asserted Patents including any additional exclusivity period applicable to those patents;

(f) A declaration that this is an exceptional case and an award of attorneys' fees pursuant to 35 U.S.C. § 285;

(g) An award of Plaintiffs' costs and expenses in this action; and

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(h)

Such further and other relief as this Court may deem just and proper.

Date: June 4, 2026

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